

U.S. District Court
Northern District of Florida (Pensacola)
CIVIL DOCKET FOR CASE #: 3:18-cv-01466-TKW-MJF

DEEPGULF INC et al v. MOSZKOWSKI
Assigned to: JUDGE T KENT WETHERELL II
Referred to: MAGISTRATE JUDGE MICHAEL J FRANK
Cause: 28:1441 Notice of Removal
Plaintiff
DEEPGULF INC

represented by

Date Filed: 06/25/2018
Jury Demand: None
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question
BRADEN KIRK BALL , JR
BRADEN K BALL JR PA - PENSACOLA FL
226 EAST GOVERNMENT STREET
PENSACOLA, FL 32502
850-432-9818
PENSACOLA, FL 32502
ATTORNEY TO BE NOTICED

Plaintiff
TOKE OIL AND GAS S.A.

represented by

BRADEN KIRK BALL , JR
(See above for address)
ATTORNEY TO BE NOTICED

V.
Defendant
MARC M MOSZKOWSKI

represented by

MARY ALLIE ELIZABETH BOLLER
THOMAS R BOLLER PC - MOBILE AL
150 GOVERNMENT STREET
SUITE 1001
MOBILE, AL 36602
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Counter Claimant
MARC M MOSZKOWSKI

represented by

MARY ALLIE ELIZABETH BOLLER
(See above for address)
ATTORNEY TO BE NOTICED

THOMAS RICHARD BOLLER
(See above for address)
ATTORNEY TO BE NOTICED

Counter Defendant
DEEPGULF INC

represented by

BRADEN KIRK BALL , JR
(See above for address)
ATTORNEY TO BE NOTICED

Counter Defendant
TOKE OIL AND GAS S A

represented by

BRADEN KIRK BALL , JR
(See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
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6/25/2018	1	NOTICE OF REMOVAL by MARC M MOSZKOWSKI from Circuit Court in and for Escambia County, Florida, case number 2018CA000543 filed by MARC M MOSZKOWSKI. (Pro Se) (bkp) (Entered: 06/25/2018)
6/25/2018	2	MOTION for Extension of Time to File Answer by MARC M MOSZKOWSKI. (bkp) (Entered: 06/25/2018)
6/25/2018	3	Filing fee: \$ 400.00, receipt number FLN 3-12015. Fee status updated to <i>paid</i> . (bkp) (Entered: 06/25/2018)
6/25/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: 2 MOTION for Extension of Time to File Answer. Referred to GARY R JONES. (bkp) (Entered: 06/25/2018)
6/25/2018	4	EMAIL NOTICE by Clerk of CM/ECF Registration Requirement as to Plaintiff's attorney Braden and Andrews (bkp) (Entered: 06/25/2018)
6/26/2018	5	ORDER granting 2 Motion for Extension of Time to Answer MARC M MOSZKOWSKI answer due 7/24/2018. A copy of order was emailed to defendant.Signed by MAGISTRATE JUDGE GARY R JONES on 6/26/18. (bkp) (Entered: 06/26/2018)
7/19/2018	6	MOTION for Extension of Time to File Answer by MARC M MOSZKOWSKI. (bkp) (Entered: 07/19/2018)
7/19/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: 6 MOTION for Extension of Time to File Answer. Referred to GARY R JONES. (bkp) (Entered: 07/19/2018)
7/25/2018	7	ORDER granting 6 Motion for Extension of Time to Answer MARC M MOSZKOWSKI answer/Response due 8/23/2018. Signed by MAGISTRATE JUDGE GARY R JONES on 7/25/18. (bkp) (Entered: 07/26/2018)
8/21/2018	8	NOTICE of Appearance by BRADEN KIRK BALL, JR on behalf of All Plaintiffs (BALL, BRADEN) (Entered: 08/21/2018)
8/22/2018	9	ANSWER to Complaint by MARC M MOSZKOWSKI. (Attachments: # 1 EXHIBIT A) (bkp) (Entered: 08/22/2018)
8/22/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: 9 Answer to Complaint. (bkp) (Entered: 08/22/2018)
8/30/2018	10	CASE MANAGEMENT AND SCHEDULING ORDER: Fed.R.Civ.P. 7.1 Corporate Disclosure Statement Deadline set for 9/13/2018 . Rule 26 Meeting Report due by 10/15/2018 . Discovery due by 11/28/2018 . Signed by MAGISTRATE JUDGE GARY R JONES on 8/30/2018. (atm) (Entered: 08/31/2018)
9/7/2018	11	Corporate Disclosure Statement/Certificate of Interested Persons by DEEPGULF INC, TOKE OIL AND GAS INC identifying Corporate Parent DeepGulf, Inc. for DEEPGULF INC, TOKE OIL AND GAS INC.. (BALL, BRADEN) (Entered: 09/07/2018)
9/11/2018	12	MOTION to Strike 9 Answer to Complaint by DEEPGULF INC, TOKE OIL AND GAS INC. (Internal deadline for referral to judge if response not filed earlier: 9/25/2018). (BALL, BRADEN) (Entered: 09/11/2018)
9/11/2018	13	REPLY by DEEPGULF INC, TOKE OIL AND GAS INC re 9 Answer to Complaint by DEEPGULF INC, TOKE OIL AND GAS INC. (BALL, BRADEN) (Entered: 09/11/2018)
9/11/2018	14	REPLY by DEEPGULF INC, TOKE OIL AND GAS INC re 9 Answer to Complaint by DEEPGULF INC, TOKE OIL AND GAS INC. (BALL, BRADEN) (Entered: 09/11/2018)
9/17/2018	15	MOTION Petitioning The Court To Grant The Defendant Privilege To Electronically Upload Legal Documents To The Civil Docket Through His CM/ECF Pacer Account, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
9/17/2018	16	Defendant's REPLIES To 9 Answer to Defendant's Counterclaim And Reply To Affirmative Defenses, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
9/17/2018	17	Defendant's REPLIES To Plaintiffs 12 MOTION to Strike Defendant's Affirmative Defenses To Numbers Two Through Eight, filed by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
9/17/2018	18	Defendant's REPLIES To Plaintiffs 13 Reply To Affirmative Defenses, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
9/17/2018	19	Defendant's REPLIES To Plaintiffs Statements, Consequences Thereof, And Conflict of Interest re 11 Corporate Disclosure Statement, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
9/17/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: 15] MOTION Petitioning The Court To Grant The Defendant Privilege To Electronically Upload Legal Documents To The Civil Docket Through His CM/ECF Pacer Account, 16 Defendant's REPLIES To 9 Answer to Defendant's Counterclaim And Reply To Affirmative Defenses, 17 Defendant's REPLIES To Plaintiffs 12 MOTION to Strike Defendant's Affirmative Defenses To Numbers Two Through Eight, 18 Defendant's REPLIES To Plaintiffs 13 Reply To Affirmative Defenses, 19 Defendant's REPLIES To Plaintiff's Statements, Consequences Thereof, And Conflict of Interest re 11 Corporate Disclosure Statement. Referred to GARY R JONES. (MB) (Entered: 09/17/2018)
9/18/2018	20	ORDER granting 15 MOTION Petitioning The Court To Grant The Defendant Privilege To Electronically Upload Legal Documents To The Civil Docket Through His CM/ECF Pacer Account, by MARC M MOSZKOWSKI. Signed by MAGISTRATE JUDGE GARY R JONES on 9/18/18. (bkp) (Entered: 09/18/2018)
9/18/2018	21	Corporate Disclosure Statement/Certificate of Interested Persons by DEEPGULF INC, TOKE OIL AND GAS INC identifying Corporate Parent DeepGulf, Inc. for DEEPGULF INC, TOKE OIL AND GAS INC.. (BALL, BRADEN) (Entered: 09/18/2018)
9/18/2018	22	MOTION Motion to Correct Scrivener's Error by DEEPGULF INC, TOKE OIL AND GAS INC. (BALL, BRADEN) (Entered: 09/18/2018)
9/19/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: 21 Corporate Disclosure Statement/Certificate of Interested Persons, 22 MOTION to Correct Scrivener's Error Referred to GARY R JONES. (kdm) (Entered: 09/19/2018)
9/19/2018	23	ORDER granting 22 Motion to Correct Scrivener's Error by DEEPGULF INC, TOKE OIL AND GAS INC. The Clerk is directed to change the docket to reflect that the Plaintiff is Toke Oil and Gas, S.A. Signed by MAGISTRATE JUDGE GARY R JONES on 9/19/18. (bkp) (Entered: 09/19/2018)
9/19/2018	24	ORDER REASSIGNING CASE. Case reassigned to MAGISTRATE JUDGE MICHAEL J FRANK for all further proceedings. MAGISTRATE JUDGE GARY R JONES no longer assigned to case. **Please use the new initials MJF on all future pleadings; i.e. 3:18cv1466-MCR-MJF. Signed by CHIEF JUDGE MARK E WALKER on 9/19/2018. (erl) (Entered: 09/19/2018)
9/24/2018	25	MEMORANDUM in Support re 9 Answer to Complaint Detailed comments to the Complaint Supplementing his Answer and Defenses by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 09/24/2018)
9/24/2018	26	MEMORANDUM in Support re 9 Answer to Complaint Statement about the Valuation of Plaintiff Toke Oil and Gas S.A. Supplementing his Answer and Defenses by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 09/24/2018)
9/24/2018	27	MEMORANDUM in Support re 9 Answer to Complaint Statement in Support of his Answer and Defenses Prior to the Conference of Parties by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 09/24/2018)
9/28/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 12 MOTION to Strike 9 Answer to Complaint , 17 Response to Motion. Referred to MICHAEL J FRANK. (jcw) (Entered: 09/28/2018)
10/3/2018	28	ORDER denying without prejudice 12 Motion to Strike. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 10/3/2018. (jcw) (Entered: 10/03/2018)
10/15/2018	29	REPORT of Rule 26(f) Planning Meeting. (BALL, BRADEN) (Entered: 10/15/2018)
10/16/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 29 Report of Rule 26(f) Planning Meeting. (MB) (Entered: 10/16/2018)
10/23/2018	30	FINAL SCHEDULING ORDER AND MEDIATION REFERRAL Re: 29 Report of Rule 26(f) Planning Meeting :(Discovery due by 1/31/2019., Dispositive Motions to be filed by 2/21/2019., Mediation to take place by 2/28/2019., Mediation Report due by 3/4/2019.), Case referred to mediation. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 10/23/18. (pll) (Entered: 10/23/2018)
12/17/2018	31	MOTION to Compel by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 12/17/2018)
12/17/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 31 MOTION to Compel . Referred to MICHAEL J FRANK. (jcw) (Entered: 12/17/2018)
12/28/2018	32	MOTION to Extend Time by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 12/28/2018)
12/30/2018	33	RESPONSE in Opposition re 31 MOTION to Compel filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 12/30/2018)
12/30/2018	34	RESPONSE in Opposition re 32 MOTION to Extend Time filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 12/30/2018)
1/2/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 32 MOTION to Extend Time, 31 MOTION to Compel , 33 Response in Opposition to Motion, 34Response in Opposition to Motion. Referred to MICHAEL J FRANK. (jcw) (Entered: 01/02/2019)
1/2/2019	35	ORDER granting 32 Motion to Extend Time. Plaintiffs must respond to Defendant's requests for production by January 11, 2019. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 1/2/2019. (jcw) (Entered: 01/02/2019)
1/4/2019	36	MEMORANDUM in Opposition re 31 MOTION to Compel filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 01/04/2019)
1/8/2019	37	ORDER. Within FOURTEEN (14) DAYS of the entry of this order, the Plaintiffs may respond to "Defendant's Supplemental Memorandum Regarding the Production of Initial Disclosures, in Support of his Response in Opposition to Plaintiffs' Motion to Compel." 36 . That response shall state the Plaintiffs' position on whether Defendant fulfilled his obligation to complete initial disclosures or whether issues remain outstanding. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 1/8/19. (Internal deadline for referral to judge if response not filed earlier: 1/23/2019.) (mlp) (Entered: 01/09/2019)
1/11/2019	38	STATEMENT OF FACTS <i>Response to Defendant's Supplemental Memorandum</i> Re: 37 Order,,, Set Deadlines/Hearings,, 36 Memorandum in Opposition to Motion filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 01/11/2019)
1/15/2019	39	MOTION to Compel by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 01/15/2019)
1/24/2019	40	RESPONSE to Motion re 39 MOTION to Compel filed by DEEPGULF INC. (BALL, BRADEN) (Entered: 01/24/2019)

1/25/2019	41	RESPONSE in Support re 39 MOTION to Compel filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 01/25/2019)
1/30/2019	42	ORDER denying without prejudice due to its prematurity 31 Motion to Compel. The parties must confer and make a good faith effort to reach an agreement regarding the location of the Defendants deposition and the mediation of this case. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 1/30/2019. (jcw) (Entered: 01/30/2019)
1/31/2019	43	MOTION to Extend Time by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 01/31/2019)
1/31/2019	44	MEMORANDUM in Support re 43 MOTION to Extend Time filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 01/31/2019)
2/1/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 43 MOTION to Extend Time, 44 Memorandum in Support of Motion. Referred to MICHAEL J FRANK. (jcw) (Entered: 02/01/2019)
2/5/2019	45	ORDER denying without prejudice 39 Motion to Compel. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 2/5/2019. (jcw) (Entered: 02/06/2019)
2/15/2019	46	ORDER re 43 . The discovery deadline is extended to March 29, 2019. Mediation shall be scheduled within FOURTEEN (14) DAYS of the docketing of this order and shall take place within THIRTY (30) DAYS of the docketing of this order. Any and all dispositive motions shall be filed by April 29, 2019. In accordance with 28 U.S.C. § 636(c)(2), the clerk of court shall forward to the Plaintiffs attorney and the Defendant a form for consenting to have a United States Magistrate Judge exercise civil jurisdiction in this case, with the case number written on it. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 2/15/19. (Dispositive Motions to be filed by 4/29/2019., Discovery due by 3/29/2019., Mediation to take place by 3/18/2019.). (mlp)(Entered: 02/15/2019)
2/27/2019	47	NOTICE OF MEDIATION re Scheduling by DEEPGULF INC, TOKE OIL AND GAS S.A. (BALL, BRADEN) (Entered: 02/27/2019)
3/4/2019	48	Notice to Pro Se (BALL, BRADEN) (Entered: 03/04/2019)
3/5/2019	49	DISCOVERY ADVISORY: Re 48 Notice to Pro Se. Counsel's attention is directed to Federal Rule of Civil Procedure 5(d), which prohibits the filing of discovery materials (including notices of deposition, deposition transcripts, interrogatories and interrogatory responses and notices thereof, production requests and responses and notices thereof, and admissions requests and responses and notices thereof) and disclosures under Rules 26(a)(1) and 26(a)(2), unless and until needed for consideration of pending motions by the court. This advisory serves as notice that no further discovery materials should be filed and all discovery posting options have been removed from CMECF. (jcw) (Entered: 03/05/2019)
3/8/2019	50	MOTION for Mediation by MARC M MOSZKOWSKI. (Internal deadline for referral to judge if response not filed earlier: 3/22/2019). (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
3/8/2019	51	MEMORANDUM in Support re 50 MOTION for Mediation filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
3/8/2019	52	MOTION for Protective Order by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
3/8/2019	53	MEMORANDUM in Support re 52 MOTION for Protective Order filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
3/11/2019	54	REFERRAL AND ORDER granting 50 Motion for Mediation. Defendant may participate in mediation on March 14, 2019 by telephone. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/11/2019. (jcw) (Entered: 03/11/2019)
3/13/2019	57	REPLY to Response to Motion re 52 MOTION for Protective Order filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/13/2019)
3/13/2019	58	NOTICE OF MEDIATION re Scheduling by DEEPGULF INC, TOKE OIL AND GAS S.A. (BALL, BRADEN) (Entered: 03/13/2019)
3/13/2019	59	STATEMENT OF FACTS Re: 58 Notice of Mediation re Scheduling. (MOSZKOWSKI, MARC) (Entered: 03/13/2019)
3/14/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 59 Statement of Facts, 58 Notice of Mediation re Scheduling, 56 Amended Response to Motion, 57 Reply to Response to Motion. (jcw) (Entered: 03/14/2019)
3/15/2019	60	AMENDED DOCUMENT by MARC M MOSZKOWSKI. Amendment to 57 Reply to Response to Motion for Protective Order. (MOSZKOWSKI, MARC) (Entered: 03/15/2019)
3/20/2019	61	NOTICE by DEEPGULF INC, TOKE OIL AND GAS S.A. (BALL, BRADEN) (Entered: 03/20/2019)
3/21/2019	62	NOTICE of Telephonic Hearing on 52 MOTION for Protective Order. Motion Hearing set for 3/27/2019 at 10:00 AM CDT via telephone before MAGISTRATE JUDGE MICHAEL J FRANK. (Instructions to be sent separately.) (jcw) (Entered: 03/21/2019)
3/21/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 61 Notice of Filing. (jcw) (Entered: 03/21/2019)
3/25/2019	63	NOTICE of Appearance by MARY ALLIE ELIZABETH BOLLER on behalf of MARC M MOSZKOWSKI (BOLLER, MARY ALLIE) (Entered: 03/25/2019)
3/26/2019	64	MOTION to Appear Pro Hac Vice by Thomas Boller.(Filing fee \$ 201 receipt number AFLNDC-4440640.) by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Certificate Good Standing, # 2 Exhibit Verified Statement) (BOLLER, THOMAS) (Entered: 03/26/2019)
3/27/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 64 MOTION to Appear Pro Hac Vice by Thomas Boller. Referred to MICHAEL J FRANK. (jcw) (Entered: 03/27/2019)
3/27/2019	65	ORDER granting 64 Motion to Appear Pro Hac Vice. Attorney Thomas R. Boller is admitted Pro Hac Vice to represent theDefendant pursuant to Local Rule 11.1(c). Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/27/2019. (jcw) (Entered: 03/27/2019)
3/27/2019	66	Minute Entry for proceedings held before MAGISTRATE JUDGE MICHAEL J FRANK: Motion Hearing held on 3/27/2019 re 52 MOTION for Protective Order filed by MARC M MOSZKOWSKI. Motion denied as moot. Parties must notify the Court of the progress of further motions by 4/1/2019. (Court Reporter Julie Wycoff.) (kgc) (Entered: 03/27/2019)
3/27/2019	67	REFERRAL AND ORDER denying as moot 52 Motion for Protective Order. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/27/2019. (jcw) (Entered: 03/27/2019)
3/29/2019	68	Joint MOTION to Extend Timein <i>Final Scheduling Order</i> by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 03/29/2019)
4/1/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 68 Joint MOTION to Extend Timein Final Scheduling Order. Referred to MICHAEL J FRANK. (jcw) (Entered: 04/01/2019)
4/2/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE M CASEY RODGERS notified that action is needed Re: 68 Joint MOTION to Extend Timein Final Scheduling Order (jcw) (Entered: 04/02/2019)
4/4/2019	69	ORDER. The parties' Joint Motion to Extend Dates in Final Scheduling Order, ECF No. 68 , is GRANTED. All discovery must be completed by 7/30/2019. The deadline to complete mediation is 7/31/2019. The deadline for filing potentially dispositive motions, as well as Daubert motions, is 8/15/2019. Mediation Report due by 8/14/2019. Signed by JUDGE M CASEY RODGERS on 4/4/2019. (MB) (Entered: 04/04/2019)
4/15/2019	70	AMENDED ANSWER to <i>COMPLAINT</i> , COUNTERCLAIM against All Plaintiffs by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 04/15/2019)
4/18/2019	71	MOTION to Strike 70 Amended Answer to Complaint, Counterclaim by DEEPGULF INC, TOKE OIL AND GAS S.A.. (Internal deadline for referral to judge if response not filed earlier: 5/2/2019). (BALL, BRADEN) (Entered: 04/18/2019)
4/18/2019	72	MOTION to Strike 70 Amended Answer to Complaint, Counterclaim by DEEPGULF INC, TOKE OIL AND GAS S.A.. (Internal deadline for referral to judge if response not filed earlier: 5/2/2019). (BALL, BRADEN) (Entered: 04/18/2019)
4/18/2019	73	MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM by DEEPGULF INC, TOKE OIL AND GAS S.A.. Motions referred to MICHAEL J FRANK. (BALL, BRADEN) (Entered: 04/18/2019)
4/18/2019		Set Deadlines re 73 MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM. (Internal deadline for referral to judge if response not filed earlier: 5/2/2019.) (sdw) (Entered: 04/18/2019)
4/19/2019		Motions No Longer Referred to MAGISTRATE JUDGE MICHAEL J. FRANK: 73 MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM (jcw) (Entered: 04/19/2019)
5/1/2019	74	RESPONSE in Opposition re 71 MOTION to Strike 70 Amended Answer to Complaint, Counterclaim filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)
5/1/2019	75	MEMORANDUM in Opposition re 71 MOTION to Strike 70 Amended Answer to Complaint, Counterclaim filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)
5/1/2019	76	RESPONSE in Opposition re 73 MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)
5/1/2019	77	MEMORANDUM in Opposition re 73 MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)
5/2/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE M CASEY RODGERS notified that action is needed Re: 74 RESPONSE in Opposition re 71 MOTION to Strike, 75 MEMORANDUM in Opposition re 71 MOTION to Strike 70Amended Answer to Complaint, Counterclaim; 76 RESPONSE in Opposition re 73 MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM, 77 MEMORANDUM in Opposition re 73 MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM (MB) (Entered: 05/02/2019)
6/14/2019	78	Second MOTION for Protective Order by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 06/14/2019)
6/14/2019	79	MEMORANDUM in Support re 78 Second MOTION for Protective Order filed by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 06/14/2019)
6/14/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 78 Second MOTION for Protective Order , 79 Memorandum in Support of Motion. Referred to MICHAEL J FRANK. (MB) (Entered: 06/14/2019)
6/18/2019	80	RESPONSE to Motion re 78 Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 06/18/2019)

6/18/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 80 RESPONSE to Motion re 78 Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A. (MB) (Entered: 06/18/2019)
6/18/2019	81	RESPONSE to Motion re 78 Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 06/18/2019)
6/18/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 81 RESPONSE to Motion re 78 Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (MB) (Entered: 06/19/2019)
6/19/2019	82	ORDER AND NOTICE OF HEARING re 78 Second MOTION for Protective Order. If the parties are unable to reach an agreement, at the hearing, Defendant'scounsel should be prepared to elect whether Defendant will travel to Pensacola to be deposed or will pay for Plaintiff's counsel to travel to France to depose him. Additionally, on or before June 25, 2019, Plaintiff shall file an estimate of the cost of deposing the Defendant in France. Finally, on or before June 25, 2019, Defendant shall file an estimate of the cost of Defendant's travel to the United States in a manner that would accommodate the Defendant's medical condition. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 6/19/2019. (Motion Hearing set for 6/27/2019 11:30 AM in U.S. Courthouse Pensacola before MAGISTRATE JUDGE MICHAEL J FRANK. Estimates for deposition due by 6/25/2019). (jcw) (Entered: 06/19/2019)
6/19/2019	83	MOTION to Continue by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 06/19/2019)
6/20/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 83 MOTION to Continue . Referred to MICHAEL J FRANK. (jcw) (Entered: 06/20/2019)
6/20/2019	85	ORDER AND NOTICE OF HEARING re 78 Second MOTION for Protective Order; granting 83 Motion to Continue. If the parties are unable to reach an agreement, at the hearing, Defendant's counsel should be prepared to elect whether Defendant will travel to Pensacola to be deposed or will pay for Plaintiff's counsel to travel to France to depose him. Additionally, on or before July 1, 2019, Plaintiff shall file an estimate of the cost of deposing the Defendant in France. Finally, on or before July 1, 2019, Defendant shall file an estimate of the cost of Defendant's travel to the United States in a manner that would accommodate the Defendant's medical condition. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 6/20/2019. (Motion Hearing set for 7/3/2019 09:30 AM in U.S. Courthouse Pensacola before MAGISTRATE JUDGE MICHAEL J FRANK.) (jcw) (Entered: 06/21/2019)
6/21/2019	84	NOTICE by DEEPGULF INC, TOKE OIL AND GAS S.A. re 82 Order Setting Hearing on Motion,,, Set Deadlines/Hearings,,, (BALL, BRADEN) (Entered: 06/21/2019)
6/24/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 84 Notice of Filing Estimate of Costs of Deposing Defendant in Nice, France. (jcw) (Entered: 06/24/2019)
6/24/2019	86	ORDER re 78 Second MOTION for Protective Order, 84 Notice of Filing Estimate of Costs. If Defendant disputes the accuracy of the estimates submitted by Plaintiffs' counsel or otherwise wishes to comment on those estimates, it must do so by filing a response on or before July 1, 2019. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 6/24/2019. (jcw) (Entered: 06/24/2019)
6/28/2019	87	NOTICE TO COUNSEL re: motion hearing set for 7/3/19 at 9:30 a.m.: These proceedings will be recorded via the courtroom sound system. Any party desiring a court reporter will be responsible for securing such service. (kgc) (Entered: 06/28/2019)
7/1/2019	88	NOTICE by MARC M MOSZKOWSKI re 85 Order Setting Hearing on Motion,,, (BOLLER, MARY ALLIE) (Entered: 07/01/2019)
7/1/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 88 NOTICE of Filing Of Defendant's Comments Pursuant To Court Orders Of 19 June, 2019 And 24 June, 2019, by MARC M MOSZKOWSKI re 85 Order Setting Hearing on Motion. (MB) (Entered: 07/01/2019)
7/1/2019	89	by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/01/2019)
7/2/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 89 OBJECTION TO DEFENDANT'S NOTICE OF INTENT TO SERVE SUBPOENA ON NON-PARTY WELLS FARGO BANK, N.A. (jcw) (Entered: 07/02/2019)
7/3/2019	91	Minute Entry for proceedings held before MAGISTRATE JUDGE MICHAEL J FRANK: Motion Hearing held on 7/3/2019 re 78 Second MOTION for Protective Order filed by MARC M MOSZKOWSKI. (Court Reporter PNS Recorder) (kgc) (Entered: 07/05/2019)
7/5/2019	90	MOTION to Quash by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/05/2019)
7/5/2019	92	ORDER denying 78 Motion for Protective Order. On July 17, 2019, Defendant shall appear for a deposition in the Northern District of Florida. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 7/5/2019. (jcw) (Entered: 07/05/2019)
7/5/2019		Set Deadlines re 90 MOTION to Quash. (Internal deadline for referral to judge if response not filed earlier: 7/19/2019.) (sdw) (Entered: 07/05/2019)
7/9/2019	93	RESPONSE to Motion re 90 MOTION to Quash filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 07/09/2019)
7/9/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 93 RESPONSE to 90 MOTION to Quash filed by MARC M MOSZKOWSKI. (MB) (Entered: 07/09/2019)
7/11/2019	94	MOTION to Compel by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/11/2019)
7/11/2019	95	MOTION to Compel <i>Memorandum</i> by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/11/2019)
7/11/2019	96	AFFIDAVIT of <i>Rustin Howard</i> by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/11/2019)
07/11/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 94 MOTION to Compel, 95 Plaintiff's Memorandum In Support 94 MOTION to Compel Response To Request For Production
7/16/2019	97	ORDER. Plaintiffs' motion to quash the subpoena issued to Wells Fargo Bank, N.A., (Doc. 90) is DENIED. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 7/16/2019. (kjlw) (Entered: 07/16/2019)
7/16/2019	98	MOTION to Compel by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 07/16/2019)
7/16/2019	99	MEMORANDUM in Support re 98 MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 07/16/2019)
7/16/2019	100	ORDER REASSIGNING CASE. Case reassigned to JUDGE T KENT WETHERELL II for all further proceedings. JUDGE M CASEY RODGERS no longer assigned to case. Signed by CHIEF JUDGE MARK E WALKER on 7/16/2019. (erl)**Please use the new judge's initials for all future filings: 3:18cv1466-TKW/MJF. (Entered: 07/16/2019)
7/17/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 98 MOTION to Compel , 99 Memorandum in Support of Motion. Referred to MICHAEL J FRANK. (jcw) (Entered: 07/17/2019)
7/17/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 98 MOTION to Compel, 99 MEMORANDUM in Support re 98 MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibits) Referred to MICHAEL J FRANK. (MB) (Entered: 07/17/2019)
7/23/2019	101	NOTICE <i>Notice of Impasse</i> by Alan Bart Bookman (BOOKMAN, ALAN) (Entered: 07/23/2019)
7/30/2019	102	RESPONSE to Motion re 98 MOTION to Compel filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 07/30/2019)
7/30/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 102 Response to Motion. (sdw) (Entered: 07/30/2019)
7/31/2019	103	ORDER re 98 MOTION to Compel; denying as moot 94 Motion to Compel. If Defendant opposes Plaintiffs' motion to compel (Doc. 94), he mustfile a response in opposition on or before August 2, 2019. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 7/31/2019. (jcw) (Entered: 07/31/2019)
7/31/2019		Set/Reset Deadlines as to 94 MOTION to Compel . (Internal deadline for referral to judge if response not filed earlier: 8/2/2019). (jcw) (Entered: 07/31/2019)
8/2/2019	104	MOTION to Compel by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 08/02/2019)
8/2/2019	105	MEMORANDUM in Support re 104 MOTION to Compel filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 08/02/2019)
8/2/2019	106	RESPONSE to Motion re 94 MOTION to Compel filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 08/02/2019)
8/5/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 104 MOTION to Compel, 105 Memorandum in Support of 94 Motion to Compel, 106 Response to Motion re 94 MOTION To Compel. Referred to MICHAEL J FRANK. (MB) (Entered: 08/05/2019)
8/7/2019	107	ORDER denying without prejudice 94 Motion to Compel. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 8/7/2019. (jcw) (Entered: 08/07/2019)
8/8/2019	108	Joint MOTION for Extension of Time to File Dispositive Motions , Joint MOTION for Extension of Time to Complete Discovery by DEEPGULF INC. (BALL, BRADEN) (Entered: 08/08/2019)
8/9/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 108 Joint MOTION for Extension of Time to File Dispositive Motions Joint MOTION for Extension of Time to Complete Discovery (MB) (Entered: 08/09/2019)
8/9/2019	109	ORDER granting 108 Joint MOTION for Extension of Time to File Dispositive Motions and to Complete Discovery filed by DEEPGULF INC. (Dispositive Motions to be filed by 11/15/2019. Discovery due by 10/31/2019.) Signed by JUDGE T KENT WETHERELL II on 8/9/2019. (sdw) (Entered: 08/09/2019)
8/13/2019	110	RESPONSE to Motion re 104 MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibit "A") (BOLLER, MARY ALLIE) (Entered: 08/13/2019)
8/13/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 110 RESPONSE to Motion re 104 MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibit "A") (MB) (Entered: 08/13/2019)

8/26/2019	111	ORDER denying without prejudice 104 Motion to Compel. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 8/26/2019. (jcw) (Entered: 08/26/2019)
8/29/2019	112	ORDER. Plaintiffs' motion to dismiss Defendant's counterclaims (Doc. 73) is GRANTED. Plaintiffs' motion to strike Defendant's affirmative defenses (Doc. 71) is GRANTED. Defendant may file a second-amended answer within 14 days of the date of this Order curing the deficiencies in the counterclaims and affirmative defenses, if he can do so in good faith. Signed by JUDGE T KENT WETHERELL II on 8/29/2019. (Second-Amended Answer due by 9/12/2019 .) (MB) (Entered: 08/30/2019)
09/06/2019	113	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re 111 Order on Motion to Compel . (BALL, BRADEN) (Entered: 09/06/2019)
9/9/2019	114	ORDER. Defendant shall have 14 days from the date of this Order to respond to Plaintiffs' objection (Doc. 113) to the magistrate judge's Order. (Response due by 9/23/2019.) Signed by JUDGE T KENT WETHERELL II on 9/9/2019. (sdw) (Entered: 09/09/2019)
9/11/2019	115	NOTICE by DEEPGULF INC, TOKE OIL AND GAS S A re 113 Response/Reply (BALL, BRADEN) (Entered: 09/11/2019)
9/12/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 115 Notice of Filing Affidavit Of GINO ERNESTO FAVARO by DEEPGULF INC, TOKE OIL AND GAS S A re 113 Response by DEEPGULF INC, TOKE OIL AND GAS S A re 111 Order on Motion to Compel, per 114 ORDER. (MB) (Entered: 09/12/2019)
9/12/2019	116	AMENDED ANSWER to <i>First</i> 70 Amended Answer to Complaint, Counterclaim , COUNTERCLAIM against All Plaintiffs by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 09/12/2019)
9/23/2019	117	RESPONSE by MARC M MOSZKOWSKI re 114 Order,, Set Deadlines/Hearings, 113 Response/Reply by MARC M MOSZKOWSKI (BOLLER, MARY ALLIE) (Entered: 09/23/2019)
9/24/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 117 RESPONSE by MARC M MOSZKOWSKI re 114 Order,, Set Deadlines/Hearings, 113 RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re 111 Order on Motion to Compel. (MB) (Entered: 09/24/2019)
9/25/2019	118	ORDER OF REMAND - That this case is REMANDED to the magistrate judge for further consideration of Plaintiffs' motion to compel and for sanctions (Doc. 104). Signed by JUDGE T KENT WETHERELL II on 9/25/2019. (MB) (Entered: 09/25/2019)
9/25/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 104 MOTION to Compel, per 118 ORDER OF REMAND. Referred to MICHAEL J FRANK. (MB) (Entered: 09/25/2019)
9/25/2019	119	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re 116 Amended Answer to Complaint, Counterclaim . (BALL, BRADEN) (Entered: 09/25/2019)
9/25/2019	120	REPLY by DEEPGULF INC, TOKE OIL AND GAS S A re 116 Amended Answer to Complaint, Counterclaim . (BALL, BRADEN) (Entered: 09/25/2019)
10/23/2019	121	MOTION to Amend/Correct by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 10/23/2019)
10/24/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 120 Plaintiffs REPLY to Affirmative Defenses, by DEEPGULF INC, TOKE OIL AND GAS S A re 116 Amended Answer to Complaint, Counterclaim, 119 Plaintiffs RESPONSES to Defendant's Counter-Claim, by DEEPGULF INC, TOKE OIL AND GAS S A re 116 Amended Answer to Complaint, Counterclaim. (MB) (Entered: 10/24/2019)
10/24/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 121 MOTION to Amend/Correct by DEEPGULF INC, TOKE OIL AND GAS S A. (MB) (Entered: 10/24/2019)
10/24/2019	122	MOTION to Strike 115 Notice (Other) by MARC M MOSZKOWSKI. (Internal deadline for referral to judge if response not filed earlier: 11/7/2019). (BOLLER, MARY ALLIE) (Entered: 10/24/2019)
10/30/2019	123	RESPONSE to Motion re 121 MOTION to Amend/Correct filed by MARC M MOSZKOWSKI (BOLLER, MARY ALLIE) (Entered: 10/30/2019)
10/30/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 123 RESPONSE to Motion re 121 MOTION to Amend/Correct filed by MARC M MOSZKOWSKI. (MB) (Entered: 10/30/2019)
11/4/2019	124	Emergency MOTION to Stay by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibit "A") (BOLLER, MARY ALLIE) (Entered: 11/04/2019)
11/4/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 124 Emergency MOTION to Stay (MB) (Entered: 11/04/2019)
11/4/2019	125	RESPONSE to Motion re 124 Emergency MOTION to Stay filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 11/04/2019)
11/4/2019	126	NOTICE of Telephonic Hearing on Motion 124 Emergency MOTION to Stay : Motion Hearing set for 11/5/2019 09:00 AM in U.S. Courthouse Pensacola before JUDGE T KENT WETHERELL II. (ijm) (Entered: 11/04/2019)
11/5/2019	127	ORDER. Defendant's emergency motion to stay (Doc. 124) is DENIED, but as agreed by the parties at the hearing. Defendant's motion to amend (Doc 121) is referred to the magistrate judge because the document that is the subject of the motion relates to the motion to compel and for sanctions (Doc. 104) that was remanded to the magistrate judge for further consideration. Plaintiffs' motion to strike (Doc. 122) is under advisement and will be ruled on as soon as the Court has an opportunity to do so. Signed by JUDGE T KENT WETHERELL II on 11/5/2019. (MB) (Entered: 11/05/2019)
11/5/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 121 MOTION to Amend/Correct, 104 MOTION to Compel Referred to MICHAEL J FRANK. (MB) (Entered: 11/05/2019)
11/5/2019	128	Minute Entry for proceedings held before JUDGE T KENT WETHERELL II: Telephonic Motion Hearing held on 11/5/2019 re 124 Emergency MOTION to Stay. Order entered. (Court Reporter Julie Wycoff.) (pmc) (Entered: 11/05/2019)
11/5/2019	129	NOTICE by DEEPGULF INC, TOKE OIL AND GAS S A (BALL, BRADEN) (Entered: 11/05/2019)
11/5/2019	131	ORDER denying without prejudice 104 Motion for Sanctions. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 11/5/2019. (jcw) (Entered: 11/06/2019)
11/5/2019	132	ORDER. On or before 11/12/2019, Plaintiffs shall file a memorandum and any supporting materials such that this court may determine "the reasonable expenses, including attorney's fees," if any, "caused by" the Defendant's delay in producing the relevant materials. After Plaintiffs file their memorandum and any supporting materials, Defendant shall have TEN (10) DAYS (11/22/2019) to respond. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 11/5/2019. (jcw) (Entered: 11/06/2019)
11/6/2019	130	ORDER DENYING 121 MOTION TO AMEND. Signed by JUDGE T KENT WETHERELL II on 11/6/2019. (sdw) (Entered: 11/06/2019)
1/8/2019	133	ORDER. Plaintiff's motion to strike (Doc. 122) is DENIED without prejudice. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 11/8/2019. (kjlw) (Entered: 11/08/2019)
11/12/2019	134	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re 132 Order,,, Set Deadlines/Hearings,, . (BALL, BRADEN) (Entered: 11/12/2019)
11/12/2019	135	STATEMENT OF FACTS Declaration of Braden K. Ball, Jr. Re: 134 Response/Reply. (BALL, BRADEN) (Entered: 11/12/2019)
11/12/2019	136	AFFIDAVIT by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 11/12/2019)
11/15/2019	137	MOTION for Summary Judgment by MARC M MOSZKOWSKI. (Internal deadline for referral to judge if response to summary judgment not filed earlier: 12/6/2019). (BOLLER, MARY ALLIE) (Entered: 11/15/2019)
11/15/2019	138	MEMORANDUM in Support re 137 MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit Exhibits, # 2 Exhibit Deposition Excerpts) (BOLLER, MARY ALLIE) (Entered: 11/15/2019)
11/15/2019	139	MOTION for Summary Judgment by DEEPGULF INC, TOKE OIL AND GAS S A. (Internal deadline for referral to judge if response to summary judgment not filed earlier: 12/6/2019). (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit) (BALL, BRADEN) (Entered: 11/15/2019)
11/15/2019	140	AFFIDAVIT by DEEPGULF INC, TOKE OIL AND GAS S A. (Attachments: # 1 Exhibit, # 2 Exhibit) (BALL, BRADEN) (Entered: 11/15/2019)
11/21/2019	141	RESPONSE by MARC M MOSZKOWSKI re 132 Order,,, Set Deadlines/Hearings,, 134 Response/Reply, 136 Affidavit, 135 Statement of Facts by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit) (BOLLER, MARY ALLIE) (Entered: 11/21/2019)
11/22/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 141 DEFENDANT'S RESPONSE To PLAINTIFFS' RESPONSE To Court Order 132 And Renewed MOTION For Sanctions, Order,,, Set Deadlines/Hearings,, 134 Response/Reply, 136 Affidavit, 135 Statement of Facts by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit) (MB) (Entered: 11/22/2019)
12/2/2019	142	ORDER re 132 Order. On or before 12/9/2019, Plaintiffs shall file with this court an accounting of the attorney's fees and costs that were incurred directly as a result of Defendant's tardiness in providing the Excel spreadsheets in question. On or before 12/9/2019, Plaintiffs shall file with this court a printout of the Excel spreadsheets in question or, if that is not feasible, Plaintiffs shall file a memorandum explaining why that is not feasible. On or before 12/9/2019, Plaintiffs shall file with this court a memorandum. If Defendant seeks to assert a harmlessness defense to the imposition of sanctions pursuant to Rule 37(d), he must file with this court any supporting materials on or before 12/9/2019. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 12/2/2019. (jcw) (Entered: 12/02/2019)
12/6/2019	143	RESPONSE to Motion re 139 MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit, # 2 Exhibit) (BOLLER, MARY ALLIE) (Entered: 12/06/2019)
12/6/2019		Set Deadlines re 143 RESPONSE to 139 Motion. Reply due by 12/13/2019 . (sdw) (Entered: 12/06/2019)
12/6/2019	144	RESPONSE to Motion re 137 MOTION for Summary Judgment filed by DEEPGULF INC, TOKE OIL AND GAS S A. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit) (BALL, BRADEN) (Entered: 12/06/2019)
12/6/2019	145	AFFIDAVIT by DEEPGULF INC, TOKE OIL AND GAS S A. (Attachments: # 1 Exhibit Exhibit A) (BALL, BRADEN) (Entered: 12/06/2019)
12/6/2019		Set Deadlines re 144 Response to 137 Motion. Reply due by 12/13/2019 . (sdw) (Entered: 12/06/2019)
12/9/2019	146	NOTICE by MARC M MOSZKOWSKI re 142 Order,,,, Set Deadlines/Hearings,,, (Attachments: # 1 Exhibit) (BOLLER, MARY ALLIE) (Entered: 12/09/2019)
12/9/2019	147	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re 142 Order,,,, Set Deadlines/Hearings,,, . (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D, # 5 Exhibit Exhibit E, # 6 Exhibit Exhibit F, # 7 Exhibit Exhibit G, # 8 Exhibit Exhibit H, # 9 Affidavit Affidavit of Rus Howard) (BALL, BRADEN) (Entered: 12/09/2019)

12/10/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 146 NOTICE of Defendant's Supplemental Filing in Support of Harmlessness Defense To The Imposition Of Sanctions Pursuant To Rule 37(d), by MARC M MOSZKOWSKI re 142 Order,,,, Set Deadlines/Hearings,,, (Attachments: # 1 Exhibit), 147 RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re 142 Order,,,, Set Deadlines/Hearings,,, (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D, # 5 Exhibit Exhibit E, # 6 Exhibit Exhibit F, # 7 Exhibit Exhibit G, # 8 Exhibit Exhibit H, # 9 Affidavit Affidavit of Rus Howard) (MB) (Entered: 12/10/2019)
12/13/2019	148	REPLY by DEEPGULF INC, TOKE OIL AND GAS S A re 143 Response to Motion . (BALL, BRADEN) (Entered: 12/13/2019)
12/13/2019	149	REPLY to Response to Motion re 137 MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 12/13/2019)
12/13/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 148 REPLY by DEEPGULF INC, TOKE OIL AND GAS S A re 143 Response to Motion. (BALL, BRADEN), 149 REPLY to Response to Motion re 137 MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (MB) (Entered: 12/13/2019)
12/13/2019		***DISREGARD, inadvertently referred to the Magistrate Judge*** ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: 148 REPLY by DEEPGULF INC, TOKE OIL AND GAS S A re 143 Response to Motion. (BALL, BRADEN), 149 REPLY to Response to Motion re 137 MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (MB) Modified on 12/16/2019 (sdw). (Entered: 12/13/2019)
12/16/2019		Motions No Longer Referred: 137 MOTION for Summary Judgment , 139 MOTION for Summary Judgment . (sdw) (Entered: 12/16/2019)
12/16/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 144 Response to Motion, 149 Reply to Response to Motion, 148 Response, 140 Affidavit, 137 MOTION for Summary Judgment , 138 Memorandum in Support of Motion, 139 MOTION for Summary Judgment , 145 Affidavit, 143 Response to Motion. (sdw) (Entered: 12/16/2019)
1/27/2020	150	ORDER ON MOTIONS FOR SUMMARY JUDGMENT. Plaintiffs' motion for summary judgment (Doc. 139) is GRANTED as to Count I of the complaint and Counterclaims I, III, and IV, and DENIED in all other respects. Defendant's motion for summary judgment (Doc. 137) is GRANTED as to Counts II through VII of the complaint, and DENIED in all other respects. Count VIII is DISMISSED without prejudice. Additionally, because it appears that this case is now ready to be set for trial, it is FURTHER ORDERED that within 7 days of the date of this Order, the parties shall confer and advise the Court of several mutually agreeable dates during the weeks of February 10-14 and 17-21, 2020, for a telephonic case management conference to set this case for trial. (Notify Chambers by 2/3/2020 of mutual dates to set case for trial). Signed by JUDGE T KENT WETHERELL II on 1/27/2020. (MB) (Entered: 01/27/2020)
1/31/2020	151	NOTICE OF HEARING - A Telephonic Hearing in this case has been set. TELEPHONIC HEARING set for MONDAY, 2/10/2020 @ 08:30 AM C.S.T. before JUDGE T KENT WETHERELL II. (mb) (Entered: 01/31/2020)
2/10/2020	152	ORDER SCHEDULING TRIAL AND ESTABLISHING PRETRIAL DEADLINES AND PROCEDURES. A bench trial will be held in this case on 6/17/2020 at 09:00 AM . The pretrial conference is set for 6/2/2020 at 10:00 AM . The attorney conference required by paragraph 4 shall be held no later than 5/12/2020 . The pretrial stipulation and other papers required by paragraphs 5 and 6 shall be filed on or before 5/26/2020 . Signed by JUDGE T KENT WETHERELL II on 2/10/2020. (sdw) (Entered: 02/10/2020)
3/16/2020	153	ORDER granting in part and denying in part 104 Motion for Sanctions. On or before April 16, 2020, Defendant shall pay Plaintiffs \$1,000.00. Plaintiffs' Motion is DENIED in all other respects. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/16/2020. (jcw) (Entered: 03/16/2020)
5/26/2020	154	MOTION to Attend Trial by Video Conference by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 05/26/2020)
5/26/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 154 MOTION to Attend Trial by Video Conference (mb) (Entered: 05/26/2020)
5/26/2020	155	TRIAL BRIEF by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 05/26/2020)
5/26/2020	156	PRETRIAL Stipulation by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 05/26/2020)
5/26/2020	157	TRIAL BRIEF by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 05/26/2020)
5/27/2020	158	NOTICE OF HEARING - Take NOTICE that a telephonic hearing in this case has been set before Judge T KENT WETHERELL for Friday, 5/29/2020 @ 10:00 AM , before JUDGE T KENT WETHERELL II. (mb) (Entered: 05/27/2020)
5/28/2020	159	RESPONSE in Opposition re 154 MOTION to Attend Trial by Video Conference filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 05/28/2020)
5/28/2020	160	AMENDED NOTICE OF HEARING - TAKE NOTICE that a telephonic hearing in this case has been set before Judge T. Kent Wetherell on Friday, 5/29/2020 @ 10:15 AM. (mb) (Entered: 05/28/2020)
5/29/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 159 RESPONSE in Opposition re 154 MOTION to Attend Trial by Video Conference filed by DEEPGULF INC, TOKE OIL AND GAS S A. (mb) (Entered: 05/29/2020)
5/29/2020	161	Minute Entry for proceedings held before JUDGE T KENT WETHERELL II:Telephone Conference held on 5/29/2020 re 154 MOTION to Attend Trial by Video Conference. Court Denies Defense Motion. Order to follow. (Court Reporter Megan Hague). (pmc) (Entered: 05/29/2020)
5/29/2020	162	ORDER denying 154 Defendant's Motion to Attend Trial by video conference. The Court defers consideration of a potential continuance of the trial until the pretrial conference when the parties will have an opportunity to provide the Court with additional and better information about Defendant's present ability to travel to the United States and the efforts he made (both before and after the coronavirus pandemic) to get any necessary permissions to do so. In the meantime, the parties are encouraged to consider and discuss whether the problem resulting from any travel restrictions can be resolved by designating and introducing the relevant portions of Defendant's deposition testimony in lieu of live trial testimony. Signed by JUDGE T KENT WETHERELL II on 5/29/2020. (mb) (Entered: 05/29/2020)
6/2/2020	163	Minute Entry for proceedings held before JUDGE T KENT WETHERELL II: Final Pretrial Conference held on 6/2/2020. Order to follow. (Court Reporter Julie Wycoff.) (pmc) (Entered: 06/02/2020)
6/2/2020	164	FINAL PRETRIAL ORDER. The bench trial will begin at 9:00 a.m. on Wednesday, 6/17/2020 in Courtroom 4 North at the United States Courthouse (One North Palafox) in Pensacola, Florida before JUDGE T KENT WETHERELL II. Any motion to reconsider the substantive rulings in this Order shall be filed no later than Monday, 6/8/2020, at noon , with a response due no later than Friday, 6/12/2020, at 5:00 p.m. . Signed by JUDGE T KENT WETHERELL II on 6/2/2020. (mb) (Entered: 06/02/2020)
6/17/2020	165	Minute Entry for proceedings held before JUDGE T KENT WETHERELL II: Bench Trial held on 6/17/2020 (Counter Claim Ct. 2). 2 Exhibit binders placed in secured storage. Court finds in favor of DEEPGULF INC. Counsel to submit proposed judgment with the Court, Proposed Judgment due by 7/1/2020 (Court Reporter Julie Wycoff). (pmc) (Entered: 06/18/2020)
6/23/2020	166	NOTICE OF FILING OF OFFICIAL TRANSCRIPT of Proceedings, EXCERPT - JUDGE'S RULING FROM THE BENCH, held on 6/17/20, before Judge T. Kent Wetherell, II. Court Reporter/Transcriber Julie A. Wycoff, Telephone number 850-470-8196. Transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER. Redaction Request due 6/30/2020. Release of Transcript Restriction set for 9/28/2020. (jaw) (Entered: 06/23/2020)
7/2/2020	167	FINAL JUDGMENT. Judgment is entered in favor of Plaintiff, DeepGulf, Inc., on Count I of the Complaint, and the Court declares that Plaintiff, DeepGulf, Inc., owns the following intellectual properties: United States Patent number: 9644792; United States Patent number: 8146667; United States Patent Publication number: 201200014751; United States Patent Publication number: 20120012225; United States Patent Publication number: 20060130729; and any and all undisclosed inventions and/or patentable ideas or methods conceived by Defendant beginning on September 15, 2005, through the date of this judgment. Defendant shall not use these intellectual properties for his personal gain without Defendant's express consent. Judgment is entered in favor of Defendant on Counts II through IX of the Complaint, and Plaintiffs shall go hence without day on those claims. Judgment is entered in favor of Plaintiffs on Counts I through IV of Defendant's Counterclaims, and Defendant shall go hence without day on those claims. The Clerk shall close the file. Signed by JUDGE T KENT WETHERELL II on 7/2/2020. (90 Day Exhibit Return Deadline set for 9/30/2020). (mb) (Entered: 07/02/2020)
7/31/2020	169	NOTICE OF APPEAL as to 150 Order,,,, Set Deadlines/Hearings,,, 130 Order on Motion to Amend/Correct, 168 Judgment,,,, by DEEPGULF INC, TOKE OIL AND GAS S A. (Filing fee \$505 Receipt Number AFLNDC-5553138.) (BALL, BRADEN) (Entered: 07/31/2020)
8/3/2020	170	Appeal Instructions re: 169 Notice of Appeal : The Transcript Request Form is available on the Internet at http://www.flnd.uscourts.gov/forms/Attorney/ECCA_transcript_form_fillable.pdf **PLEASE NOTE** Separate forms must be filed for each court reporter. Transcript Order Form due by 8/17/2020 . (mb) (Entered: 08/03/2020)
8/3/2020	171	Transmission of Notice of Appeal and Docket Sheet to US Court of Appeals re 169 Notice of Appeal. (mb) (Entered: 08/03/2020)
8/3/2020	172	MOTION to Withdraw as Attorney by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 08/03/2020)
8/3/2020	173	MOTION to Withdraw as Attorney by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 08/03/2020)
8/3/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 173 MOTION to Withdraw as Attorney , 172 MOTION to Withdraw as Attorney (mb) (Entered: 08/03/2020)
8/4/2020	174	ORDER GRANTING MOTIONS TO WITHDRAW AS COUNSEL. The motions 172 , 173 are GRANTED, and the Bollers shall have no further obligation to represent Defendant in this case after complying with paragraph 2. Within 2 days from the date of this Order, the Bollers shall send a copy of this Order to Defendant and file a notice with the Court certifying that they have done so. The notice shall include the address for serving future pleadings and orders on Defendant. (Deadline to file Notice of certificate of service to defendants due by 8/6/2020 .) Signed by JUDGE T KENT WETHERELL II on 8/4/2020. (mb) (Entered: 08/05/2020)
8/7/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 174 Order. (certificate of service not filed) (sdw) (Entered: 08/07/2020)

8/7/2020	175	RESPONSE by MARC M MOSZKOWSKI re 174 Order,,, Set Deadlines/Hearings,, by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit) (BOLLER, MARY ALLIE) (Entered: 08/07/2020)
8/7/2020	176	RESPONSE by MARC M MOSZKOWSKI re 174 Order,,, Set Deadlines/Hearings,, 175 Response/Reply by MARC M MOSZKOWSKI. (Attachments: # 1 Exhibit) (BOLLER, MARY ALLIE) (Entered: 08/07/2020)
8/7/2020	177	USCA Case Number 20-12897-G and PROCEDURAL LETTER re: 169 NOTICE OF APPEAL by DEEPGULF INC, TOKE OIL AND GAS S A. Set Deadlines: Clerk to check status of Appeal on 12/1/2020. (sdw) (Entered: 08/31/2020)
1/4/2021	178	ORDER of REMAND by USCA as to 169 Notice of Appeal filed by DEEPGULF INC, TOKE OIL AND GAS S A. We believe that the district court should have the first opportunity to determine whether it had subject matter jurisdiction, and we accordingly remand this case to the district court for the limited purpose of making that determination. Once the district court makes its determination as to subject matter jurisdiction, it should provide this Court with a copy of its decision. Because the relief the Appellants seek in their response to our jurisdictional question is premised on the district courts jurisdictional finding, we DENY their motion without prejudice to renewal after the district court has made its determination on limited remand. (mb) USCA Appeal #20-12897-G. (Entered: 01/06/2021)
1/6/2021	179	ORDER REQUIRING BRIEFING OF JURISDICTIONAL ISSUE. Within 14 days from the date of this Order, Plaintiffs shall file a response to Defendant's argument in the notice of removal that Toke was fraudulently joined and should be disregarded in determining whether the Court had diversity jurisdiction. Defendant shall have 14 days from the date Plaintiffs file their response to file a reply. Plaintiffs shall have 7 days from the date Defendant files his response to file a sur-reply. (Internal deadline for referral to judge if response to defendant's argument not filed by 1/20/2021 .) Signed by JUDGE T KENT WETHERELL II on 1/6/2021. (mb) (Entered: 01/06/2021)
1/20/2021	180	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re 179 Order,,, Set Deadlines/Hearings,, . (BALL, BRADEN) (Entered: 01/20/2021)
2/3/2021	181	REPLY by MARC M MOSZKOWSKI re 180 Response/Reply . (MOSZKOWSKI, MARC) (Entered: 02/03/2021)
2/5/2021		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 181 RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A, 180 REPLY by MARC M MOSZKOWSKI. (blr) (Entered: 02/05/2021)
2/5/2021		Set Deadlines re 169 Notice of Appeal: (Clerk to check status of Appeal on 5/6/2021.) (blr) (Entered: 02/05/2021)
2/10/2021	182	REPLY by DEEPGULF INC, TOKE OIL AND GAS S A re 181 Response/Reply . (BALL, BRADEN) (Entered: 02/10/2021)
2/11/2021		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 182 Reply by DEEPGULF INC, TOKE OIL AND GAS S A (blr) (Entered: 02/11/2021)
2/16/2021	183	ORDER CONCERNING SUBJECT MATTER JURISDICTION re: 180 , 181 and 182 . The Clerk shall provide a copy of this Order to the Eleventh Circuit. Signed by JUDGE T KENT WETHERELL II on 2/16/2021. (Eleventh Circuit provided a copy of Order via email.)(blr) (Entered: 02/16/2021)
4/21/2021	184	MANDATE of USCA as to 169 Notice of Appeal. We hereby VACATE the judgment in this case and REMAND with instructions for the district court to remand the case to state court because, as the district court determined, it lacked alienage jurisdiction over the case. USCA #: 20-12897-GG. (blr) (Entered: 05/04/2021)
5/4/2021		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: 184 USCA Mandate. (blr) (Entered: 05/04/2021)
5/5/2021	185	ORDER REMANDING CASE TO STATE COURT. Based on the Eleventh Circuit's Order vacating the judgment and remanding this case with instructions (Doc. 184), it is ORDERED that this case is remanded to the Circuit Court for the First Judicial Circuit in and for Escambia County, and the Clerk shall close the case file in this Court. Signed by JUDGE T KENT WETHERELL II on 5/5/2021. (blr) (Entered: 05/05/2021)
5/19/2021	186	MOTION for Reconsideration re 185 Order, Remanding Case to State Court by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 05/19/2021)
5/19/2021	187	ORDER DENYING RECONSIDERATION. Defendant's motion to reconsider (Doc. 186) is DENIED. Signed by JUDGE T KENT WETHERELL II on 5/19/2021. (blr) (Entered: 05/19/2021)
10/4/2022	188	DOCKET ANNOTATION BY COURT: Re 165 Bench Trial, 184 USCA Mandate filed, exhibits destroyed (not retrieved by counsel). (pmc) (Entered: 10/04/2022)